

UNITED STATES DISTRICT COURT

for the
District of Montana

In the Matter of the Search of)
 (Briefly describe the property to be searched)
 or identify the person by name and address))
 INFORMATION ASSOCIATED WITH IMEI 3529 1110)
 0163 AND EMAIL ACCOUNTS)
 FUN1JJ1978@GMAIL.COM AND)
 NSALYER@GMAIL.COM)

Case No. MJ-24-12-BLG-TJC

SEARCH AND SEIZURE WARRANT

To: Any authorized law enforcement officer

An application by a federal law enforcement officer or an attorney for the government requests the search of the following person or property located in the Northern District of California
 (identify the person or describe the property to be searched and give its location):

See Attachment A, herein attached and incorporated by reference

I find that the affidavit(s), or any recorded testimony, establish probable cause to search and seize the person or property described above, and that such search will reveal (identify the person or describe the property to be seized):

See Attachment A, III, herein attached and incorporated by reference

YOU ARE COMMANDED to execute this warrant on or before 1-25-24 (not to exceed 14 days)
☒ in the daytime 6:00 a.m. to 10:00 p.m. ☐ at any time in the day or night because good cause has been established.

Unless delayed notice is authorized below, you must give a copy of the warrant and a receipt for the property taken to the person from whom, or from whose premises, the property was taken, or leave the copy and receipt at the place where the property was taken.

The officer executing this warrant, or an officer present during the execution of the warrant, must prepare an inventory as required by law and promptly return this warrant and inventory to Timothy J. Cavan
 (United States Magistrate Judge)

☐ Pursuant to 18 U.S.C. § 3103a(b), I find that immediate notification may have an adverse result listed in 18 U.S.C. § 2705 (except for delay of trial), and authorize the officer executing this warrant to delay notice to the person who, or whose property, will be searched or seized (check the appropriate box)

☐ for days (not to exceed 30) ☐ until, the facts justifying, the later specific date of

Date and time issued: 1-11-24 10:57 a.m.

Judge's signature

City and state:

Billings, MT

Timothy J. Cavan, U.S. Magistrate Judge

Printed name and title

Attachment A

I. Subject Account and Execution of Warrant

This warrant is directed to Google, Inc. (the "Provider"), headquartered at 1600 Amphitheatre Parkway, Mountain View, California 94043, and applies to all content and other information, specifically including geolocation information, within the Provider's possession, custody, or control associated with the IMEI/MEID 3529 1110 0163 379 and/or email addresses fun1jj1978@gmail.com or nsayler@gmail.com (the "Subject Account").

A law enforcement officer will serve this warrant by transmitting it via email or another appropriate manner to the Provider. The Provider is directed to produce to the law enforcement officer an electronic copy of the information specified in Section II below. Upon receipt of the production, law enforcement personnel will review the information for items falling within the categories specified in Section III below.

II. Information to be Produced/Disclosed by the Provider

To the extent within the Provider's possession, custody, or control, including any information that has been deleted but is still available to the Provider or that has been preserved pursuant to a request made under 18 U.S.C. § 2703(f), the Provider is directed to produce the following information associated with the Subject Account(s) for the time period May 01, 2020 through December 17, 2020:

- a. Subscriber/registration information to include name, emails, phone numbers, addresses, account creation dates, account status, registration IP address, means and source of payment (including any credit or bank account numbers), records of session times and durations, and the temporarily assigned network addresses (such as Internet Protocol ("IP") addresses) associated with those sessions, including log-in IP addresses, length of service (including start date and creation IP) and types of service utilized, and change history;
- b. Records of user activity for each connection made to or from the Account(s), including, for all Google services, the date, time, length, and method of connection, data transfer volume, user names, source and destination IP address, name of accessed Google service, and all activity logs
- c. All Gmail address(es) associated with the identified Account(s) including any secondary or backup email addresses associated with the Accounts;
- d. All IP Address logs for all services utilized by the Account(s), to include records of session times and durations, login/logout/intra-communication IP addresses associated with session times and date, methods of connecting, and log files;
- e. Location history for the Subject Account(s) for the period May 01, 2020 through December 17, 2020 (**MDT (-6 hours from UTC)**) to include **deleted** information, derived from Global Positioning System (GPS) data, cell site/cell tower triangulation precision

measurement information such as timing advance or per call measurement data, Wi-Fi location information, and Bluetooth location information. Such data shall include the GPS coordinates, the dates and times of all location recordings, origin of how the location recordings were obtained, and estimated radius;

f. The contents of all text messages, voicemails, recorded calls, emails, and chat messages associated with the account for the period of May 01, 2020, up to and including December 17, 2020, including stored or preserved copies of chat logs, emails sent to and from the account, draft communications, the source and destination addresses associated with each communication, the date and time at which each communication was sent, and the size and length of each communication;

g. All photos and videos stored in the account;

h. Passwords or other protective devices in place and associated with the Account(s), which would permit access to the content stored therein;

i. Web search history, including, but not limited to, mobile and desktop browser searches;

j. Downloaded, installed, and/or purchased apps along with activity/registration information;

k. Voice and/or audio activity recordings/captures;

l. Google Map locations which are saved and/or frequent locations, favorite and/or starred locations including, but not limited to, searches conducted using the Google Map and/or Maze services;

m. Google Voice incoming or outgoing phone calls, voicemails, including voicemail content and any and all incoming or outgoing text message history, together with the content thereof to include SMS, MMS, or any other form of text message communication, and any call forwarding numbers and account backup telephone numbers;

n. Google Hangouts connection records including, but not limited to, voice calls, video calls, text messages and/or chats, and voicemails; all stored content to include voicemails and message/chat content; IP logs; any call forwarding numbers and account backup telephone numbers; subscriber information; and billing information;

o. All records or other information regarding the identification of the account subscriber and/or user(s), to include full name, physical address, telephone numbers and other identifiers, records of session times and durations, the date on which the account was created, the length of service, the IP address used to register the account, login IP addresses associated with session times and dates, account status, alternative email addresses provided during registration, methods of connecting, log files, and means and source of payment (including any credit or bank account number);

p. Device identifiers (IMEI/MEID, serial number, SIM operator, cell operator, and model number, etc.), account identifiers, Android ID, Push Tokens and/or Device Tokens, Device Tag, Device Number, and/or Android Device Configuration Service Data, etc. associated with the Account(s);

q. All records or other information stored at any time by an individual using the account, including address books, contact and buddy lists, calendar data, pictures, and files;

r. Posts, status updates, photographs and/or videos that are contained and/or were uploaded in the services known as Google Photos, Picasa web albums, Google +, or any other service designed to store video, photographs, and/or data, including the metadata for each file;

s. Electronic files, folders, media, and/or data uploaded and/or contained on the service known as Google Drive;

t. Entries created, deleted, or modified using the service known as Google Keep;

u. Contacts stored using the service known as Google Contacts, including any contacts stored in the service known as Gmail, and any other service where contact lists are maintained;

v. Google Play Store transactions;

w. Additional accounts linked by cookies; and

x. Any of the above stated information that is stored or maintained in a tombstone or deleted account or file.

III. Information to be Seized by the Government

All information described above in Section II that constitutes evidence, fruits, contraband, and instrumentalities of violations of 18 USC 2252(a)(2).